

CASES IN CALIFORNIA POLITICS AND ADMINISTRATON



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Cases in California Politics and Administration: Centering Equity and Social Justice Issues

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CHAPTER OVERVIEW

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1: Implementing Ethnic Studies Courses- Who Decides?

Introduction

Among the most enduring debates in the study and practice of public administration surrounds the making and implementation of public policy. In particular is the question of *bureaucratic discretion*: Once policy is made by elected officials, how much discretion are professional administrators afforded to implement policies according to their professional norms? This question exists in most public sector organizations, from city managers and their elected city councils, to public health administrators and their elected boards. In the following case study, this question pits education professionals, whose training, education, and experience have prepared them to implement policy and programs in public schools, against school board members, who have been democratically elected to make education policy decisions. The case asks the reader to consider how we balance this classic divide between professional public administrators—school district superintendents, principals, and teachers— and our representative democracy in which voters elect representatives at the state and local levels.

On Friday, October 8, 2021, Gov. Gavin Newsom signed Assembly Bill (AB) 101, making California the first state in the nation to require a semester-long course in ethnic studies for high school graduation (Fensterwald 2021a). Passage of AB 101 was years in the making. The first such bill was introduced in 2016, after Governor Jerry Brown's 2015 veto of a bill that would have created a state-level Ethnic Studies Advisory Commission to prepare a model curriculum for ethnic studies electives in grades 7-12 (Fensterwald 2021b). While many school districts, including Los Angeles Unified and Fresno Unified, were adding these courses to their curriculum, legislation at the state level continued to stall. When a bill eventually hit Gov. Newsom's desk in 2020, he vetoed it, noting ongoing disagreements over the proposed model curriculum (Fensterwald 2020). Finally, after the curricular language and expectations were refined, Gov. Newsom signed AB 101 into law; California high schools have to offer ethnic studies courses by the 2025-26 school year, and students will have had to pass at least one semester of ethnic studies to graduate in 2030. The law's model curriculum includes a focus on the four groups traditionally part of ethnic studies, Blacks, Latinx, Native Americans, and Asian Americans, but encourages schools to include the histories and legacy of religious and ethnic groups in their own communities (Fensterwald 2021a). To facilitate this, the California Department of Education included lesson plans that address Californians of the Jewish and Sikh faiths, as well as Arab- and Armenian-American communities. As is often the case, passage of legislation is not the end of the story; in this case study it is just the beginning as local school districts, largely comprised of education professionals, attempt to implement a state policy that has become a politically contentious "culture war" issue at the local level.

The Structure of California's Education System

The structure of California's public education system is complex, including a statewide elected Superintendent of Public Instruction who serves as both the head of the California Department of Education, and the Executive Officer of the State Board of Education (SBE). Eleven other members of the SBE serve four-year terms, are appointed by the governor, and include a Board President and Vice President. Each of California's 58 counties has a County Office of Education which provides services to the state's 1,000 school districts. Each school district has its own charter and an elected board of trustees. The district charter details rules that include the number of school board members (five or more), and laws regarding their elections. The school board sets education policy at the district level, and hires—and can fire—a district superintendent. The superintendent is a professional education administrator typically with years of experience and specialized training in education administration. Superintendents answer directly to the school board, and their responsibilities include managing the district, and hiring school principals. Education professionals within each school include principals, vice principals, and teachers.

Important to note for this case study is that all of the elected officials in California's public education system, including the State Superintendent of Public Instruction, are elected via *nonpartisan* ballot. However, while candidates do not announce their political party or run on a party platform, all are partisans, and public school elections have increasingly become politically partisan events.

Why Ethnic Studies?

The Civil Rights movement of the 1960s created an interest in educating students about the histories of those typically excluded from U.S. textbooks: Blacks, Latinx, Native Americans, and Asian Americans. Ethnic Studies programs, the first of which began at San Francisco State University in 1969 after a five-month student strike, spread to universities across the country over the next two decades (Ehsanipour 2020; see *Ethnic Studies* podcast, below). Ethnic studies curriculum is multi-faceted. It is described as an interdisciplinary, comparative field that focuses on the social, cultural, political, and historical contributions of Americans from

ethnic and racial minority groups that puts the history of social movements into the context of the struggles these groups have faced; the curriculum typically explores alternatives to dominant cultural and institutional values as a way to assert the right to full social, political, and economic participation for people of color (Dee & Penner 2017; Hu-DeHart 1993; Tintiangco-Cubales, Kohli, Sacramento, Henning, Agarwal-Rangnath, & Sleeter 2015).

From the perspective of the teaching profession, bringing ethnic studies to high schools is not without challenges. This is particularly due to a lack of education and training in the field, and is compounded by a lack of teachers of color (Tagami 2023; Tintiangco-Cubales et al. 2015). Although White teachers can successfully teach ethnic studies, they are less likely to have the educational background, or the personal experiences that resonate so clearly with students of color. For those concerned about educational outcomes, it is important to note that there is ample research confirming that ethnic studies courses are important drivers of success for students of color on a number of measures including attendance, grades, standardized test scores, and graduation rates (Bonilla, Dee, & Penner 2021; Cabrera, Milem, Jaquette, & Marx 2014; Dee & Penner 2017; Sleeter 2011; Tintiangco-Cubales et al. 2015). This is particularly important as the National Center for Education Statistics finds continuing disparities between racial groups in terms of scores in reading and mathematics, absenteeism, Advanced Placement credits, and high school completion. In general, Asian/Pacific Islanders tend to fare best on these measures, followed by Whites, with Black, Latinx, and American Indian students faring less well (National Center for Education Statistics, 2018).

Why California?

California is considered a minority-majority state, which means no single racial/ethnic group constitutes over 50% of the population. It is among the most diverse in the nation, with a population that is 39% Latinx, 35% White, 15% Asian American/Pacific Islander, 5% Black, 4% multi-racial, and 1% Native American (Johnson, McGhee & Mejia 2023). More importantly for this case study, nearly 77% of California children, therefore the vast majority of public school students, are not White. As noted above, education research tells us that there are disparities in education outcomes between racial/ethnic groups, **and** that ethnic studies courses have profound, positive effects, particularly for students of color. For many educators, the benefits of ethnic studies curriculum for California students are fairly clear.

For example, in 2010, the elected members of the San Francisco Unified School District Board of Education voted unanimously to support ethnic studies in district high schools, and a committee of social studies teachers was tasked with creating its curriculum (Tintiangco-Cubales et al. 2015). The year-long 9th grade course they created focuses “on themes of social justice, anti-racism, stereotypes, and social movements led by people of color from US history spanning the late eighteenth century until the 1970s” (Bonilla, Dee, & Penner 2021, p.2). The course has been found to be particularly beneficial for low-performing students in the district, significantly improving attendance, engagement, and graduation rates.

As the birthplace of university Ethnic Studies programs, San Francisco was a logical, and liberal-leaning community in which to pilot high school ethnic studies courses. As such, in more than a decade, the curriculum has experienced little of the political backlash that has occurred in other communities. Perhaps most notable in this regard is the 2010 experience of Arizona’s Tucson Unified School District (TUSD), when the state legislature passed House Bill (HB) 2281, essentially dismantling TUSD’s Mexican American Studies (MAS) program in district high schools. Arguing that program curriculum was too politically charged, HB 2281 forbid courses that advocated “ethnic solidarity rather than treating pupils as individuals,” promoted “resentment toward a race or class of people,” were “designed primarily for pupils of a particular ethnic group,” or promoted “the overthrow of the U.S. government” (Cabrera et al. 2014, p. 1085). Most dramatically, the debate over the MAS program lead to a 2011 TUSD Board of Education meeting at which student protestors chained themselves to school board members’ chairs (see *UNIDOS*, below). Although a federal court overturned HB 2281 as unconstitutional, and ethnic studies courses continue to be offered in TUSD, the lessons of the Tucson experience are important as the political rhetoric over ethnic studies heats up across the country (Stephenson 2021).

Political Battles and Education Policy

In California, several school districts in Orange County have been ground zero for these contentious battles between teachers, parents, and students who support ethnic studies curriculum, and those who fear that ethnic studies will further divide students along racial and ethnic lines. In 2021, as it became clear that Gov. Newsom would sign AB 101, ethnic studies opponents in Orange County began to mobilize. Debate about the curriculum lead to calls for recalling school board members in several districts, a Los Alamitos School Board meeting that was moved on-line at the recommendation of city police who feared violence, and at least one district voting to ban the teaching of “critical race theory” (Elattar 2021).

Many opponents of ethnic studies have argued that the curriculum is a veiled way to infuse critical race theory (CRT) into K-12 classrooms (Elattar 2022; Elattar 2023a). CRT, they argue, is racist, anti-American, and Marxist indoctrination. Education professionals say that this is a misunderstanding of CRT; in 2021 the California School Boards Association released a fact sheet^[1] clarifying that CRT, taught primarily in law schools and other graduate-level courses, is a method of legal and social analysis, and is not part of California's ethnic studies curriculum. This has not stopped opponents from arguing against ethnic studies by framing it as CRT in disguise.

Much of the consternation over ethnic studies is related to what is known as the “parental rights” movement in public education. This movement is rooted in conservative social, religious, and political concerns about the way issues such as race and sexual orientation are discussed in public schools (Walsh 2022). Fueled by school closures, mask mandates, and vaccine requirements during the Covid-19 pandemic, many parents across the country were mobilized to seek greater control over their public schools. These were often the same parents who feel that issues of race, gender identity, and sexual orientation are better discussed at home, and do not belong in the classroom (Replogle 2022; Walsh 2022). Thus, the parental rights movement has blossomed since 2020, with education professionals frequently caught in the middle. In the case of the pandemic, school policies were dictated by state and local public health guidelines, leaving school officials little discretion over mandates. Similarly, AB 101 is California state law, and high schools are required to offer ethnic studies courses to ensure their students earn a high school diploma.

Placentia-Yorba Linda Unified School District

The communities of Placentia and Yorba Linda in north Orange County share a single school district of 24,000 students (Replogle 2022). While less than one-third of Placentia-Yorba Linda Unified School District (PYLUSD) students are White, the controversy around ethnic studies became heated in 2022. Although the PYLUSD School Board approved a Multicultural Studies elective for its high schools in 2021 on a 3-2 vote, the same board passed a resolution *against* CRT by the same margin in April 2022. The board resolved that while the district “honors the experiences of all students by encouraging instruction that explores the history, philosophy, and structures that comprise the American experience,” it would “not allow the use of Critical Race Theory as a framework to guide such efforts” (Elsasser 2022, n.p.). In publishing the resolution, the PYLUSD superintendent added an open letter to district families in which he noted that CRT was not being used in the district, nor had there been plans to use it. He also noted that the school board resolution would not lead to any curricular changes, and that teachers would “continue to exercise professional judgment when deciding whether or not a particular issue is suitable for study or discussion” (Elsasser 2022, n.p.).

The anti-CRT resolution raised questions about censorship, and fears that some of the district's Advanced Placement (AP) classes could lose their AP license, meaning the courses would not count for AP credit (Elattar 2022). This fear is not unfounded. In response to the heated political rhetoric surrounding the curriculum of many social studies courses, College Board, the organization that runs the AP program, sent a letter to AP teachers across the country in April 2022 noting that if required curriculum was censored, course AP licenses could be revoked (Najarro 2022). Further, the California State University, Fullerton College of Education announced it would pause student-teacher placements in PYLUSD beginning in spring 2023 due to concerns about the anti-CRT resolution. Student-teachers in the district worried that their teaching experience was not in compliance with state standards for curriculum related to race and cultural identities, and noted that their mentor teachers were unable to provide adequate clarity in light of the school board resolution (CSUF News 2022; see *California District*, below).

None of this quelled the debate, and parental rights forces in PYLUSD fielded candidates for two school board seats in a contentious November 2022 election (Replogle 2022). One long-time incumbent lost, and was replaced by a very vocal parental rights supporter, the other incumbent trustee won reelection. Among the first board actions in 2023 was passing a policy that requires a vote of the school board before the district can use a new book in classrooms; these decisions are typically made by a review committee at the school or district level (*Orange County Register* Editorial Board 2023). This policy resulted from concerns over classroom adoption of an autobiographical graphic novel about one woman's experience during the Iranian Revolution in the late 1970s (Elattar 2023b). While the board ultimately allowed the novel to be used, the new policy has been derided by critics as potentially making even routine decisions politically charged. The editorial board of the *Orange County Register*, well-known to be conservative-leaning, called the policy “creepy,” and argued that it “will dumb down students’ reading material by assuring educators propose only the least-controversial books—lest it set off controversy at a board meeting. The policy encourages ideologically driven board members to grandstand” (2023, n.p.). It seems clear that the next school board elections, in which three seats will be up for grabs, will continue to be politically heated.

Orange Unified School District

Just south of PYLUSD sits the city of Orange, whose school board has similarly been the site of debate over parental rights in public schools. The Orange Unified School District (OUSD) includes parts of Anaheim, Santa Ana, and Garden Grove, and educates 27,000 children. In January 2023 during a special, closed-session board meeting of the Orange Unified School Board (OUSB), the newly elected conservative majority voted 4-3 to fire its superintendent and put the assistant superintendent on administrative leave. At that same meeting, the majority voted to appoint an interim superintendent from outside the district, and temporarily move an existing administrator into the assistant superintendent position.

These actions, coming without notice, and while district students, teachers, and both administrators were on winter break, looked political to many people. Parents argued that the superintendent had been named Administrator of the Year by Orange County PTAs just a few months earlier, and that these board actions would cost the district hundreds of thousands of dollars. Within 24 hours, hundreds had signed a petition to seek recall elections against the conservative school board majority.

The School Board president said that the board needed to act quickly to make changes desired by the new board majority which was seeking a “parent-first” district (Kopetman 2023a). He explained that the superintendent was fired to encourage reform and refocus the district on “academics and educating students. We have been focusing too much on the social politics of education” (Kopetman 2023a, n.p.). Among board concerns were how sex education, social equity, and ethnic studies were presented in district curriculum.

In addition to complaints about the political nature of firing the superintendent, a lawsuit was threatened against the OUSB for violating California’s Ralph M. Brown Act (Fensterwald 2023). The Brown Act is an open meetings law that provides transparency to actions taken by all elected bodies in the state. In addition to requiring 24-hour public notice of meetings, it disallows private negotiations among elected officials, and requires that all board actions be taken during public meetings. The four members of the OUSB majority were accused of organizing the firing and immediate hiring of an interim superintendent via email, before the January meeting. If an elected body is found to have violated the Brown Act, its actions can be nullified; in this case, the former OUSD superintendent could be reinstated.

Adding fuel for parents already angry with the school board, one of the first actions of the interim superintendent of Orange Unified was to shut down the school district’s digital library app after two parents complained about the LGBTQ-friendly content of two books in the library’s collection (Sforza 2023). Although the digital library was only suspended for a week, parent outrage grew as students lost access to library materials, some of them in the middle of finishing assignments (Elattar 2023). A district librarian argued that the lack of access is particularly hard on economically disadvantaged students for whom the digital holdings are a way to level educational resource gaps. A week after reinstating the digital library, and after five weeks on the job, the interim superintendent announced that he would be leaving the district (Schallhorn and Kopetman 2023). Four months after firing its superintendent, the Orange Unified School Board halted a search for a permanent replacement, noting that the Brown Act lawsuit, and parent efforts to recall several board trustees made it difficult to attract suitable candidates for the job (Kopetman 2023b). Finally, after eight months, a permanent superintendent was hired, however, that did not stop the recall efforts against two trustees. In March 2024, after successfully helping to pass a ban on Gay Pride flags in the district, and a requirement that schools notify parents if a student asks to be addressed by a name or gender pronoun not assigned to them at birth, two of the self-described “parental rights” advocates were successfully recalled by school district voters (Replogle 2024).

Conclusion

While it is widely recognized that it is impossible to fully separate politics from public policy, it is also generally accepted that most implementation decisions should be as free from partisan politics as possible, and that policy experts should be granted a level of discretion over their work (Overeem 2005; Rosenbloom 2008). However, the reality of implementing public policy is often not so simple. Education professionals are typically granted discretion over many decisions in public schools: they choose textbooks, software technology, maps and globes, reference materials and library books, and design curriculum based on their subject-matter expertise. In the case of AB 101, the state legislature and governor created an Ethnic Studies requirement for high school students, and teaching professionals designed a model curriculum for use in the state’s schools. However, schools do not have to use the model curriculum, and were encouraged to add materials to meet the needs of their own diverse religious and ethnic communities. As in creation of the state’s model curriculum, many expected that district teachers would drive curricular decisions in their local schools. In both PYLUSD and OUSD, however, long-time school board members were ousted in 2022 in favor of candidates who campaigned on platforms of parental rights over professional expertise.

On the issue of ethnic studies, this leaves education professionals, including district superintendents, principals, and teachers, in a quandary. AB 101 is state law; schools are required to offer ethnic studies classes beginning in the 2025-26 school year, and students will not be eligible for high school graduation without having at least a semester of ethnic studies by May 2030. While most California school districts are preparing teachers and curriculum to meet the legal requirements, others have elected school boards whose intention is to fight against implementation of AB 101, perhaps even get the state legislature to overturn the ethnic studies requirement entirely (Rossman-Benjamin 2023). It will be interesting to watch how education professionals address their legal (and some would argue *ethical*) obligations to provide meaningful ethnic studies curriculum to California's diverse student population, while navigating the contested political waters of their elected school boards.

Questions to Consider

The study of public administration has long elevated the status of the professional as a way to provide efficient and effective public service. In the case of education, teachers are trained and educated to teach specialized subject matter, and even specific populations of students (elementary, high school, special needs, etc...). How did the values of public education professionals interact with the values of democratically elected policymakers in this case?

Critics of the parental rights movement note that school policies have long allowed parents the right to seek alternate assignments or books if parents find them inappropriate for their children. Do you think these policies are enough, or does technology like digital libraries make this an outdated way to provide parental control over access to school resources? Will these technologies keep students from accessing materials their parents do not want them to see?

In our federal system, it is not uncommon to see a higher level of government pass legislation and then give lower levels of government discretion over specific policy decisions. We see this in AB 101, in which elected officials at the state level left some policy decisions to locally elected school boards. Using this case study as the example, how would you describe the pros and cons of this aspect of federalism?

In what ways does this case study affect your views on the value of ethnic studies curriculum in California schools; i.e., are you more or less in favor, and why? In what ways does it affect your views on parental rights in public schools; i.e., are you more or less in favor, and why?

Podcasts & Videos

Ethnic Studies: Born in the Bay Area from History's Biggest Student Strike (July 30, 2020) Asal Ehsanipour, KQED (21 minute listen)

UNIDOS takes over Tucson Unified School District School Board (April 26, 2011) Three Sonorans News (14 minute video)

California district loses half of its student teachers after banning critical race theory (November 4, 2022) Erin Burnett, CNN (4 minute video)

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NOTE

[1] California School Boards Association (2021) Critical Race Theory FAQs https://www.csba.org/-/media/CSBA/Files/GovernanceResources/EducationalEquity/CriticalRaceTheory_FAQ_7-1-2021.ashx?la=en&rev=43cc698d0964446e889fd1a45ff136a9

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2: Power to the People- Recalls and Referendums

Introduction

In 1861, the Central Pacific Railroad of California was created by four men, Leland Stanford, Collis P. Huntington, Mark Hopkins, and Charles Crocker. Known as the Big Four, they spent \$16,000 to start a company that would earn more than \$200 million in profit over the next several decades (Starr, 2007). Together with the Union Pacific Railroad, the Central Pacific was commissioned by the federal government to complete a rail system connecting the Eastern and Western United States, thereby reducing the cross-country journey from six months to less than a week. With \$15 million from the State of California and many millions more in federal loans, cash payments, and grants of land, the two railroads became the largest landowners in the West by the time Leland Stanford hammered the last railroad spike in the transcontinental railroad at Promontory Summit, Utah in 1869.

From the 1860s into the 1900s the railroads were king in California, with the Big Four operating 85% of the state's transportation and controlling 10% of its land. Central Pacific solidified its power by manipulating newspapers with bribes and favors to editors, and by controlling the state's political system through land deals with local officials, campaign donations and free rail tickets to legislators (Lawrence & Cummins 2020; Starr 2007). Its political power was so vast that at one point Leland Stanford was both president of the Central Pacific Railroad and Governor of California. While the state's 1879 constitution created new regulations, including a Railroad Commission, the power of the Central Pacific remained great and when the Progressive movement came to California in 1900,[1] its proponents sought a variety of reforms to end this sort of political and economic corruption.

Progressives also wanted to curb the power of the party politics, especially the urban political "machines" that gained loyalty from immigrant voters through offers of jobs and services, stood in the way of politically neutral solutions to public problems (Lawrence & Cummins 2020). The Progressive movement sought to protect and empower White middle class citizens, and to weaken the influence of political parties, large corporations, and labor unions on city halls and state capitols. In California, the most influential Progressive leader was Governor Hiram Johnson who sought to give power to the people by weakening the parties, businesses and unions through his support of constitutional amendments that established the state's three tools of direct democracy, the initiative, referendum, and recall in 1911.

While the initiative process, which theoretically allows average citizens to put laws on the ballot for a direct vote by the people is the most well-known of the three, in this case study we consider the other two forms of direct democracy in California, the recall and the referendum. The case highlights the state's reaction to a 2014 measles outbreak at Disneyland that eventually infected 300 people in the U.S., Mexico, and Canada. Although the outbreak led to increased public support for vaccinations, and facilitated legislation that strengthened California's childhood vaccination requirements, not everyone was happy with these new public health mandates. Opponents used the tools of the recall and referendum to make their voices heard. As you read this case study consider the rules of direct democracy, its original purpose, and how these tools are used by the public today. How might the recall and referendum affect the actions of elected officials? How much power do these tools give the public, and should they be reformed in any way?

Direct Democracy in California[2]

Before the Progressive movement, California's government operated much like the national government with the legislative, executive, and judicial branches making, implementing, and interpreting the law, as well as serving as a check on one another. For example, we elect legislators who make most of the state's laws. In addition, we elect twelve executive branch members, including the governor, whose agencies implement state law, policies, and programs. Finally, we elect judges who ensure that those laws adhere to the state constitution. With direct democracy, however, California's government became more of a hybrid, with power shared between elected officials and the people. Voters have an enormous amount of power to make laws *directly* through the initiative process, or reject them through use of referendums, and they can remove elected officials through the recall. Only 11 states allow the use of all three forms of direct democracy, and since 1980, Californians have used these tools, especially the initiative process, more frequently than any other state (Van Vechten 2019).

While direct democracy was designed by Progressives to curb the power of special interests such as corporations and labor unions, today both of these groups, along with ultra-wealthy individuals, can bankroll the process, getting nearly any issue they want—or elected official they don't want—on the ballot. The process of getting on the ballot is similar for each form of direct democracy, beginning with paying \$2000, drafting the text that will appear on the ballot, and then qualifying it by gathering the required number of signatures from registered voters.

- For an **initiative**, which will create a new law, the number of signatures is equal to 5% of the votes cast in the most recent gubernatorial election; if that new law is an amendment to the California Constitution, the number of signatures is equal to 8% of votes cast. For either one, proponents have 180 days to collect these signatures; in 2024 initiatives will need 546,651, and constitutional amendments will need 874,641 signatures of registered voters to qualify for the ballot.^[3]
- For a **referendum**,^[4] also known as a popular, petition, or protest referendum, which will nullify a law passed by the state legislature, the number of signatures required is equal to 5% of the votes cast in the most recent gubernatorial election, so 546,651 in 2024. Proponents have only 90 days to collect valid signatures to get a referendum on the ballot.
- For a **recall**, which will remove an elected office holder, proponents have 160 days to collect valid signatures. The number of signatures required depends on the official being recalled: for governors or other statewide officers, such as the California Attorney General, the number is equal to 12% of votes cast in the previous election for that office, and signatures must come from at least five different counties. For legislators and judges, the required number of signatures is equal to 20% of the votes cast in the election that put them in office.

The first stage of direct democracy that requires a large amount of money is signature gathering. The difficulty in collecting hundreds of thousands of signatures in a limited amount of time has led to an entire industry that includes professional signature gatherers—those folks in front of Target or Trader Joe’s who encourage you to sign their petitions, and who can earn up to \$11 per signature (Van Vechten 2019). On average, it costs \$3M just to gather the valid signatures to get a recall, referendum, or initiative on the ballot. Given all of this, it’s not surprising that 75 percent of attempts to use direct democracy fail at this stage (Lawrence & Cummins 2020).

If the proponents can gather the required signatures in time—known as *qualifying*—they move on to the campaign stage, where huge amounts of money are needed to persuade voters. Typically, both proponents and opponents of the ballot measure make use of TV, radio, and social media advertising as well as inundating voters with mass mailings, all of which can add up quickly. A pair of 2022 ballot initiatives related to sports betting, Prop 26 and Prop 27, were the most expensive in California history, costing over \$463M. Regardless of the money spent, both sports betting initiatives ended up like 65% of ballot propositions: as failures (Lawrence & Cummins 2020).

Referendums do not fare much better than initiatives. For example, in over 100 years only about 50 referendum have made it to the ballot, with a success rate of about 42 percent. Note that, because a referendum seeks to keep a signed bill from becoming law, while the referendum process is underway the law does not go into effect, and because ballot measures are only voted on during a November general election, a referendum can delay a new law for up to two years. Some argue that the increased use of the referendum in recent years is a result of corporations trying to delay government regulation of their business practices, including those related to greenhouse gas emissions, worker safety, and environmental protection (Baldassare & Katz 2023).

Successful recall elections are even rarer than initiatives and referendum, particularly recalls of state legislators and governors, which are so uncommon that successes can almost be counted on one hand (Michelson et al. 2023). Although rarely successful, the recall has gained a higher profile in the past 20 years, largely due to the first-and-only successful recall of a California governor, Gray Davis, in 2003. It has been argued that using the recall is the only way that the Republican Party, with its declining numbers in California, could win the governor’s seat (Van Vechten 2023; Gumbel 2021). Governor Davis, a Democrat who had been re-elected in 2002, was never a charismatic leader, but several things made him particularly vulnerable to recall including a budget deficit, an electricity crisis that led to increased prices and rolling blackouts across the state, and the tripling of car registration fees, which angered many. In addition, a wealthy congressman energized the recall effort when he personally spent \$1.6M to ensure enough signatures were gathered to get the recall on the ballot (Van Vechten 2023). In the end, voters recalled Gray Davis, and had to choose from 135 candidates to replace him. The most well-known of these was actor Arnold Schwarzenegger, who won the governor’s seat with 49 percent of the vote.

Recall efforts in California increased after 2003, especially at the local level. One reason is likely the relative ease of the state’s recall process. For example, while eight states require an official to have engaged in criminal activity to face recall, California requires only a stated reason—and any reason is sufficient (Van Vechten 2023). Further, the process of recall and replacement is completed in one election. First, is a simple yes or no *ballot question*, “Shall [the official] be recalled from office,” next is the *special election* question, which is the list of candidates vying for office if the majority votes yes on the ballot question. Getting on the ballot as a possible replacement for a recalled official simply requires a filing fee (\$4,200 to run for governor in 2021), and fewer than 100 nomination signatures. Note that the official being recalled is not eligible to run in the special election.

Like the initiative and referendum, recalls can be very expensive. More than \$200M was spent in the 2021 recall election of Governor Gavin Newsom, yet the campaign was an abject failure as 62 percent of voters rejected the recall—the same percent that

had put Newsom into office in 2018 (Van Vechten 2023). It is likely that proponents would not have gotten the Newsom recall on the ballot had it not been for the Covid-19 pandemic, which led a state judge to provide a 4 month extension for signature gathering. The Newsom recall experience, growing use of the referendum, and continuing complaints about the initiative have led to a number of calls to reform California's direct democracy. We will discuss these ideas after exploring the rise of the anti-vaccine movement and the case of Disneyland's measles outbreak.

Vaccine Hesitancy and Refusal

Despite overwhelming support from the medical community, vaccine hesitancy and vaccination opponents have existed since the first vaccines became available. The modern anti-vaccination movement began to flourish in 1998, with the publication of an article by Andrew Wakefield linking Mumps/Measles/Rubella (MMR) vaccines with autism (Gullion, Henry, & Gullion, 2008; Kata 2012). Critics of Wakefield's work quickly raised concerns about the size of his research sample, the lack of a control group, and the article's over-reliance on parent's personal opinions rather than data; later, numerous studies discredited Wakefield's claims, and the journal that published the article, *The Lancet*, retracted it (Aylesworth-Spink 2016). However, it took several years for researchers to test and debunk Wakefield's original findings, and by that point many parents had grown suspicious of vaccines.

Interestingly, wealthier, better educated parents are actually *most likely* to hesitate or refuse vaccinations (Esquivel 2014; Gullion, Henry, & Gullion, 2008; Keneally 2019; Oster & Kocks 2018). This is often seen among those seeking more natural parenting styles (Gullion, Henry, & Gullion, 2008), and may also be because these parents are more likely to have the time and resources to search the internet for vaccine information; unfortunately, the internet is often filled with misinformation about healthcare, and vaccines in particular (Kata 2012; Larson, Gakidou, & Murray 2022; Gullion, Henry, & Gullion, 2008). Research has found that factors related to vaccine hesitancy include low levels of confidence in the medical and scientific community, lack of trust in government and public health departments (Kata 2012; MacDonald and the SAGE Working Group 2015), and perhaps most important is the parent's trusted networks: when their friends and information networks discourage vaccinations, parents are far less likely to vaccinate on the recommended schedule (Brunson 2013).

The power of personal networks is clear in Southern California where several wealthy schools and communities, including Los Angeles' Westside, and South Orange County, have experienced low vaccination rates (Esquivel 2014; Karlamangla & Poindexter 2017; The Hollywood Reporter 2014). Much of this has been attributed to Dr. Robert Sears, a pediatrician in the wealthy coastal city of Dana Point, who wrote a popular 2007 book suggesting an alternative schedule for childhood vaccinations (Esquivel 2014). Parents report sharing the book and referring vaccine hesitant friends to Dr. Sears who has publically told parents that high vaccination rates among most of the public means that individual families can forego vaccinating their own children with few risks; in other words: if everyone else is vaccinated, your kids can remain unvaccinated. This argument has led to outrage from many in the medical field who note that, once the vaccination rate for diseases like measles dips below 93%, outbreaks like the one at Disneyland are far more likely (Bharath 2018; Esquivel 2014).

The Mouse gets the Measles

In December 2014, amidst the crowds and long lines that are ubiquitous at Disneyland during the winter holidays at least one person infected with the measles virus visited the park. While public health officials were never able to identify this person, their active case of measles set off an outbreak that spread to 147 people across seven states in the U.S, and into Mexico and Canada (CDC 2015; Doll & Correia 2021). The Canadian Public Health Agency traced this outbreak to 150 cases of measles in Canada in 2015 (Doll & Corriera 2021). Among U.S. patients, more than 75 percent were unvaccinated, and nearly all of those infected in Canada were part of a religious community that refuses vaccinations. In the U.S., 20 percent of those who contracted the disease had symptoms severe enough to require hospitalization.

Governments have long used the public schools as a vehicle to vaccinate the majority of the public, thus gaining what is known as "herd immunity," which involves vaccinating a large enough percent of the population to stop the spread of contagious illness, thereby protecting overall community health (Gullion, Henry, & Gullion, 2008; Morens, Folkers, & Fauci 2022). When the 2014 measles outbreak started at Disneyland, the state of California had among the most lax childhood vaccination requirements in the country. All states allow medical exemptions for mandated school vaccines, and most states allow religious exemptions, however, California was one of only 20 states that also allowed for parental personal belief exemptions (Chandler 2015). The Disneyland outbreak highlighted the increased use of vaccine exemptions in California as kindergartners were twice as likely to have received exemptions in 2014 as in 2007 (Esquivel 2014). As noted earlier, it was among Whiter, more affluent communities that vaccine hesitancy and refusal rates were highest. For example, while the state average for kindergartners with personal-belief exemptions was just 3.1 percent, nearly 10 percent of kindergartners in Orange County's Capistrano Unified School District had personal-belief

exemptions; in some schools in the district more than half of students had vaccine exemptions. Contrast these numbers with vaccination rates in Santa Ana Unified, a working class, Latinx community just 20 miles away, where the personal belief exemption rate was .2%.

As public health professionals would predict, the lower level of vaccinations led to increased rates of disease. Outbreaks of measles, thought to have been eradicated in the U.S. in 2000, started to flare again within the decade, including 667 reported cases in 2014 (Clemmons, Wallace, Patel, & Gastañaduy 2017). Other diseases that had long gone dormant have been reintroduced in the U.S. as well, including whooping cough (Liu & Ringel 2015), and polio, a very serious illness that once caused thousands of cases of childhood paralysis each year. While eradicated in the U.S. more than forty years ago, the polio virus was found in New York City wastewater treatment systems after an unvaccinated man was paralyzed by the disease in 2022 (Greenblatt 2022).

Disneyland's 2014 measles outbreak, coupled with lower rates of vaccination among California children led to quick action from State Senator Richard Pan, a pediatrician, and sponsor of Senate Bill (SB) 277, which allowed only medical exemptions to vaccine requirements (Willon & Mason 2015; see *California Senator* video, below). Many proponents of SB277 pointed out that before a vaccine was introduced in 1963, more than 3 million people in the U.S. contracted measles each year, nearly 50,000 were hospitalized and 400-500 died annually (CDC 2015). The virus is airborne—passed through coughs and sneezes—but can also live on surfaces for up to 2 hours (Glenza 2015; see *Shots in the Dark*, below). Measles is among the most contagious diseases in circulation; an estimated 90% of unvaccinated individuals who come in contact with it will become sick. Due to the Disneyland outbreak, which spread across the U.S. and into both Mexico and Canada, California's Assembly and Senate overwhelmingly passed SB277, and Governor Jerry Brown signed it into law just six months after the Disneyland outbreak.

This was not the end of the story, however, because while the medical community applauded SB277 as a perfect example of the role of public health mandates safeguarding community health, vaccine opponents were incensed (Lin 2015; Willon & Mason 2015). Opponents of SB277 flooded the state capitol in protest, and Senator Pan received death threats (Chabria 2015). California's system of direct democracy allowed these angry voters to take their case against SB277, and Senator Pan, directly to the voters. Within a month, opponents, who were a coalition of Christian conservatives, liberal vaccine skeptics, and civil libertarians concerned about government overreach, began circulating a petition to recall Senator Pan, and sought to put a referendum on the ballot to overturn the law. Remember that California's direct democracy allows the public to vote to recall an elected official for *any reason*, provided they can collect enough signatures within a 160-day period, and for a referendum, opponents can put a law on a statewide ballot if they can gather the required signatures in 90 days.

In the end, while opponents of SB277 needed 35,926 signatures to put Senator Pan on a recall ballot, they could not meet that goal and submitted no signatures by the December 30th deadline (White 2015). Similarly, opponents only gathered about 60% of the 365,880 signatures needed to force a referendum on the new restrictions (McGreevy 2016). Both efforts by opponents of SB277 had failed, which Senator Pan hailed as a victory for science and public health and an important success for the health of California children (McGreevy 2016; White 2015). Importantly, public health officials credit SB277 with sparing Californians from subsequent major outbreaks of measles (Krishnakumar & Karlamangla 2019; Oster & Kocks 2018). For example, in 2019, the number of cases in the U.S. topped 750, but California had only 42 cases, which is attributed to its high vaccination rate of 97 percent.

Regardless of this success, opponents continued to fight vaccine mandates. By 2017, school and public health officials noticed a marked increase in the number of vaccine medical exemptions being issued by doctors (Karlamangla & Poindexter 2017). While some of this increase may have been attributable to parents who had previously used the personal belief exemption, at some schools the numbers of medical exemptions were well above the 3 percent that might have been expected—in several schools 20+ percent of students had medical exemptions. Public health officials were alarmed to find doctors advertising their willingness to write exemptions for children with minor ailments that would not typically be affected by vaccines (Karlamangla 2018). All of this led the California State Medical Board to investigate more than 50 physicians—including Dr. Sears of Dana Point, who was put on a 35-month probation for exempting a 2-year old from all vaccinations without reviewing the child's medical records.

As a consequence of what he viewed as a loophole in SB277, Senator Pan introduced another vaccine bill, SB276, in 2019. The new bill sought to increase the regulation of medical exemptions issued by doctors. In an interview about SB276 Senator Pan foreshadowed future events just six months before the Covid-19 pandemic began, saying, “We talk about the four horsemen of the apocalypse: death, war, famine, plague and disease. Yet people don't really believe in infectious disease anymore, and that's foolish” (Ho 2019).

Again in 2019, vaccine opponents targeted Senator Pan, including an incident in which an SB276 opponent livestreamed himself arguing with and then pushing the senator (Gutierrez 2019; Ho 2019). The man was arrested on assault charges, and Senator Pan

faced another recall attempt that argued his sponsorship of SB276 was an act of treason. Again, however, the recall attempt went nowhere and SB276 was signed into law by Governor Gavin Newsom (Cole 2019). While the Covid-19 pandemic created additional arguments over vaccination requirements, both SB277 and SB276 remain California law, and the Covid-19 vaccine was *not* added to the list of required childhood vaccinations (Lambert 2023).

Time for Reform?

California's tools of direct democracy have been a hallmark of the state's political system for over 110 years. These tools continue to be very popular with the public: A 2023 survey found that 79 percent of voters think that the referendum is a good thing (Baldassare 2023), and a 2021 survey found even more support for the recall, at 86 percent (Baldassare 2021). However, there are many criticisms of the system. While the Progressive reformers of a century ago expected direct democracy to curb the power of political parties and other moneyed interests, the reality is that the process has become so expensive that corporations, labor unions, and wealthy individuals are more likely to use it successfully than are average voters.

This has led to public concerns that special interests have too much control over California's direct democracy. As noted earlier, vast amounts of money are spent by proponents and opponents to get proposals on the ballot and during the campaign season. Not surprisingly, the role of money, especially in signature gathering to get referendums and recalls on the ballot, are among the features people most want reformed, for example, some have suggested requiring a certain percentage of signatures to be collected by unpaid volunteers (Baldassare 2021; Baldassare 2023).

Another complaint is that the ballot language for both initiatives and referendums can be confusing, and competing ballot propositions make things worse. The referendum can be particularly confusing as proponents of a referendum ask you to vote "no" on the new law, and opponents persuade you to vote "yes" (Baldassare 2023). These campaigns, which often involve technical issues such as insurance regulation, leave voters unsure about the consequences of voting for (or against) the referendum. Naturally, people are more likely to vote "no" when faced with confusing or contradictory campaign messages. Further, as discussed above, there are increasing concerns that industry has used the referendum to delay implementation of regulations, even when they are popular with the public and the referendum is likely to fail.

For recall elections, a majority of voters support reforms that limit recalls to only instances of illegal or unethical conduct by elected officials (Baldassare 2021; Van Vechten 2023). Other suggested reforms include increasing the number of signatures required, holding a separate election to choose a successor if the recall is successful (Van Vechten 2023), or replacing the two-part ballot with a single ballot question that asks, "Which of the following candidates should complete the current term," with the incumbent on the list of candidates (Nava 2022). The biggest concern with the recall, however, involves its potential for an undemocratic result. Consider the following example: Assume that on the first ballot question, 51 percent vote "yes" to the recall, while 49 percent vote "no" —this slim majority is enough to recall the official. On the special election question, which is the list of candidates vying for office, the winner only needs a *plurality* to win. This means that if there are many candidates, someone with 25 percent (or less) of the vote could replace an official that 49 percent had voted to retain. That is not at all a democratic result.

Conclusion

Six years before the Covid-19 pandemic made vaccines a high profile political issue, a measles outbreak at Disneyland led to legislation that strengthened California's childhood vaccine requirements. Using the tools of direct democracy, opponents of vaccine requirements attempted to overturn the legislation and oust its author from the state senate. Neither effort was successful, raising questions about the use of these tools.

This reading, which highlights the use of referendum and recall illustrates several of the system's weaknesses, including the power of moneyed interests, some of direct democracy's odd and confusing rules, and the fact that neither the recall nor the referendum are very successful. However, after eleven decades direct democracy remains a popular and lasting legacy of California's Progressive Movement, even while its flaws are more and more clear.

Questions to Consider

Progressive reformers expected direct democracy to give power to the people. Using what you have learned about the way referendums and recalls work, explain whether or not you think this is true.

How does this reading affect your opinions on the recall: Now that you know more about it, do you think it is effective or not, and why? Should it be reformed, and if so, in what ways?

How does this reading affect your opinions on the referendum: Now that you know more about it, do you think it is effective or not, and why? Should it be reformed, and if so, in what ways?

The most famous recall election in U.S. history is that of Governor Gray Davis (see Direct Democracy in California, above). Davis's recall led to the election of Arnold Schwarzenegger in 2003, and came *less than a year* after Davis had been re-elected to his second term. In what ways might the fear of being recalled change the behavior of elected officials? Note that recalls of local officials such as city council members and mayors have increased since 2003.

Video/Podcasts

CA State Senator Richard Pan explains his sponsorship of SB277. *Sacramento Bee*. (2 minute video)

Ruining it for the Rest of Us: Shots in the Dark. Susan Burton. 2008. *This American Life*. (22 minute podcast) December 19, 2008

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NOTES

[1] In 1885 the Central Pacific merged with and renamed itself the Southern Pacific Railroad.

- [2] Most research has been done on initiatives, so this look at recalls and referendum is somewhat unique; for more information on the initiative, please see the Initiative and Referendum Institute (<http://www.iandrinstitute.org/>)
- [3] Numbers come from the California Secretary of State *Statewide Initiative Guide*, 2024. <https://elections.cdn.sos.ca.gov/ballot-measures/pdf/statewide-initiative-guide.pdf>
- [4] A compulsory, or legislative referendum is a law brought before voters by the state legislature, therefore it does not require voter signatures. Typically these are either constitutional amendments, which always require a popular vote, or bond measures which seek to raise more than \$300,000.

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3: We Can't Change the Past- Government Lessons in Making Amends

3.1: Introduction

In 2022, two prominent elected women uttered the same words, “We can’t change the past.” One, Michigan Governor Gretchen Whitmer, was discussing a recently received federal grant from the U.S. Department of Transportation which will help the state and the City of Detroit replace the 60-year old I-375 freeway with a more accessible street-level boulevard (Schuster 2022). Like many freeways built in the U.S. in the 1960s, I-375 cut through two prosperous Black neighborhoods, displacing 130,000 people, closing houses of worship, uprooting family businesses, and wiping out generations of family wealth (Brooker 2021; Michigan Office of the Governor 2022). The new boulevard promises to reconnect neighbors and neighborhoods in areas of the city that have experienced rapid residential and commercial growth in recent years.

The second woman to note that “we can’t change the past” was Los Angeles County Board of Supervisors member, Janice Hahn (Martinez and Kurland 2022). On June 28, 2022, the LA County Board of Supervisors returned beachfront property to the Bruce family, nearly 100 years after the City of Manhattan Beach had essentially stolen it from its original owners, Willa and Charles Bruce. The Bruces ran a popular resort for Black Angelinos at a time when most Southern California beaches were segregated. This case study considers what it means to make amends for historic injustice, including who should be responsible, what actions are required, and to whom amends are due. In particular, it highlights the story of Bruce’s Beach, a plot of land along the Pacific Ocean in Los Angeles County which was unjustly taken, and eventually returned to the family of its rightful owners.

3.2: Reparations in Practice and Theory

The idea of government making amends, or *reparations*, is not new in the United States. Most notably it was practiced when President Ronald Reagan signed the Civil Liberties Act of 1988, which made formal apology and provided \$20,000 to each survivor of the Japanese-American internment camps during World War II (Johnson 1988). As the U.S. entered the war in 1942, President Franklin D. Roosevelt signed Executive Order 9066, which allowed the incarceration of over 125,000 people of Japanese descent, primarily American citizens and legal resident aliens, under the guise that they posed a threat to national security after Japan’s bombing of Pearl Harbor. Rounded up with only what they could carry, tens of thousands of families were forced from their homes, put on trains, and sent to one of dozens of assembly centers and ultimately to armed camps, most of which were in California, Hawaii, New Mexico, and Texas ([https://ireizo.com/about\[1\]](https://ireizo.com/about[1])). At least two of those incarcerated were 90 years old, and hundreds of children were born in the camps. Most of these families lost their homes, businesses, and livelihoods. The last camp closed in 1946.

While this history was largely ignored for the next thirty years, in 1979 the National Council for Japanese Americans Redress was formed to organize efforts to seek reparations for survivors of the camps (Yoshida 2021). As a result of their efforts, congress created a U.S. Commission on Wartime Relocation and Internment of Civilians (CWRIC), and in 1982 the Commission’s report noted that there had been no military analysis, nor was there any justification for the mass incarceration. Rather, “The broad historical causes which shaped these decisions were race prejudice, war hysteria, and failure of political leadership” (CWRIC 1982, p. 18). These efforts, and several years of congressional wrangling, lead to the reparations provided by the Civil Liberties Act of 1988.

Reparations for Blacks who had been kidnapped and subject to enslavement, and to their descendants, was the premise of “forty acres and a mule,” the unfulfilled promise that the U.S. government made at the end of the Civil War. At that time, Field Order 15 set aside 400,000 acres of Confederate owned land for distribution to the formerly enslaved (Ray & Perry, 2020; see *Sarah McCommon* podcast, below). After President Abraham Lincoln was assassinated, President Andrew Johnson took over the White House and Johnson rescinded Field Order 15, returning the land to former slave holders. With little recourse, many Blacks worked as sharecroppers on the same fields for the same families that had previously enslaved them.

It is clear that the impact of slave labor to the U.S. economy was immense. It has been argued that “America’s emergence as a major industrial nation was possible only because of the massive input provided by slave labor at a time when labor was the scarce factor in the American production function” (Browne 1972, p. 41). Their work in cotton fields, on railroads, and in the early infrastructure of the nation, including building the White House and the Capitol Building, led directly to vast wealth among plantation owners, and to U.S. economic growth in general (Browne 1972; Coates 2014; Wright 2020). An exact valuation of that labor, however, is still debated among historians and economists (Wright 2020), as is the concept of economic reparations for descendants of the enslaved.

3.3: Seeking Reparations: Compensatory Justice

Among the first calls for Black reparations in the modern era came in 1969, against the backdrop of the Black Power Movement when James Forman, speaking on behalf of the Black Economic Development Conference, commandeered the dais of New York City's Riverside Church to read The Black Manifesto (The Riverside Church n.d.; SNCC n.d.). The Manifesto was a demand for \$500 million in economic reparations from America's white churches and synagogues as recognition of organized religion's complicity—both knowingly and unknowingly—in the subjugation of Black Americans from slavery through Jim Crow (see *Muhammad Kenyatta* interview, below). Forman's argument was largely based on what political philosophers refer to as claims of *compensatory or reparative justice*, the need for specific remedies in order to alleviate historical injustices (Forrester 2019).

Forman's call for reparations was widely debated along several lines (Forrester 2019). First, among progressives, Civil Rights leaders worried that Forman's tactics were too incendiary and not likely to gain broad support. Many also disagreed with The Black Manifesto's targeting of religious institutions rather than government, which was regarded by some as the only institution, "through the use of its tax monies, [that] can truly compensate blacks for centuries of slavery, injury, and degradation" (Bedau 1972, p. 41). Current debates between proponents involve what reparations from government might look like: Lump sum payments? Payments over time? Free 2- or 4-year college education? Forgiveness of student loan debt? Grants for home ownership or business start-ups? (Ray & Perry, 2021).

Another approach has been to seek reparations from private corporations. In a 2002 class action lawsuit, *In Re African-American Slave Descendants*, plaintiffs filed suit against a list of major U.S. corporations, arguing that they "had profited from slavery by either insuring slaves, lending to owners, or, in some cases, even owning slaves, and that those who descended from slaves have various civil claims arising from this corporate involvement in slavery" (Innis 2010, p. 652). This lawsuit, and a subsequent re-filing in 2005, were both dismissed in federal court.

Opponents of reparations have a number of different lines of argument as well. On questions of federal reparations, one argument is that the U.S. government did not engage in slavery, thus demands for reparations should be made to southern states, not the federal government (Epstein 2004). Relatedly, families of Union Army soldiers killed in the Civil War could argue that their anti-slavery debt has been paid. Similarly, other groups whose ancestors faced systematic injustices could argue that they deserve reparations themselves. Determining who is eligible for compensation is among the most difficult questions surrounding reparations (Hassan & Healy 2019). Determining who should bear the burden is another problem, as many argue that they should not be held responsible, nor should their tax dollars be used to fix a problem they did not cause (Breslau & Butler 2023). Some have suggested that programs like Affirmative Action or even welfare, which are said to compensate for current inequities, should be counted as a form of reparations (Epstein 2004; Forrester 2019).

3.4: Federal Inaction leads California to Act

By the late 1970s the Civil Rights era was largely over, and the subject of federal government reparations had generally fallen from public conversation. However, U.S. Congressman John Conyers of Michigan brought the issue to Congress in 1989 by introducing House Resolution (HR) 40, calling for a commission to study the long-term impacts of slavery on Black America and consider appropriate remedies (Coates 2014). Although Conyers re-introduced HR 40 every year from 1989 until his death in 2019, it was never voted out of committee until 2021 (Summers, 2023; see *Juana Summers* interview, below). Further, although it was voted out of committee, HR 40 was not sent to the floor of the House of Representatives for a vote in 2021. Thus, while public discussion of reparations has been reinvigorated over the past decade due to a variety of factors including a much-debated 2014 article, "The Case for Reparations," by Ta-Nehisi Coates, the murder of George Floyd being designated a new era of "racial reckoning," and HR 40 finally being voted out of committee, a serious discussion of Black reparations continues to stall at the federal level.

Seeing little progress in Washington DC, in 2020 the State of California became the first to create a Reparations Task Force to study the effects of slavery and discrimination against its Black residents (Fry 2023a). Among task force recommendations are a California African American Freedmen Affairs Agency to process claims for reparations which would be provided to Black Californians who have experienced damages in five areas: housing discrimination, unfair/uncompensated property takings, devaluation of businesses, harm to personal health, and harm from mass incarceration. The task force of economists, scholars, and policymakers has worked through different models of reparations, estimating economic loss depending on two key factors: what category/ies of damages one experienced, and how long one has lived in the state (Fry 2023b). Its final recommendations noted that while California joined the U.S. as a "free" state in 1850, it offered no protections to Black people, and enforced the Fugitive Slave Act, allowing for capture and return of those who fled enslavement, until emancipation in 1863 (Associated Press 2023). Recommendations include a formal apology to descendants—limited to those whose families were in the U.S. in the 19th century—

and reparations of cash or some cash equivalent. Once finished with its work, the California State Legislature will have to vote on a final program of reparations (Fry 2023b).

While economists, philosophers, and politicians debate these issues, many local government leaders are learning about injustices in their own backyards, and seeking remedies. Such was the case when, in April 2021, Los Angeles County Supervisor, Janice Hahn, announced that a parcel of land in her district known as Bruce's Beach would be returned to the family of its original owners nearly 100 years after the beachfront property had been seized by the City of Manhattan Beach (City News Service 2021). Given the value of Southern California real estate, the estimated value of the property was \$20M.

The history of Bruce's Beach has been well documented by the County of Los Angeles (Chief Executive Officer, Los Angeles County n.d.; see *CEO LAC* video, below), and the City of Manhattan Beach (2021). In 1912, even before Manhattan Beach had been granted incorporation as a city, Mrs. Willa Bruce^[2] bought the parcel as a resort for Black residents to swim, fish, relax, and enjoy the beach. She and her husband, Charles, called the property Bruce Beach Front, and opened for business in June 1912. Within a week, White residents began harassing guests, but neither Mrs. Bruce nor her patrons were deterred. In response to this harassment, she told reporters with the *Los Angeles Times*, "Wherever we have tried to buy land for a beach resort we have been refused...but I own this land, and I am going to keep it" (City of Manhattan Beach 2021, p. 6). Bruce Beach Front thrived over the next decade, allowing the Bruces to build a lodge and acquire an additional lot for expansion of their business in 1920.

Their success encouraged other Black families to purchase property in the area, some building vacation homes, to create a small community and one of the few beaches that welcomed Blacks in the region (Chief Executive Officer, Los Angeles County n.d.). Although the Bruces, their Black neighbors, and their resort guests continued to face harassment in various forms—fake No Parking and No Trespassing signs, fires started in and around their homes, Ku Klux Klan members harassing Black fishermen with racist pamphlets—the community flourished (City of Manhattan Beach 2021).

In 1921, however, White real estate agents brought a petition before the Manhattan Beach City Council, seeking to have Bruce Beach Front condemned. Council members, fearing they would be considered bigots if they took the land, did not acquiesce (City of Manhattan Beach 2021). In 1924, however, one of the agents found a loophole through the Park and Playground Act of 1909 which allowed the city to use eminent domain^[3] to seize the Bruce's property under the pretense of building a public park. In addition to the Bruce property, the city seized the property of five other Black families, along with a number of empty lots owned by Whites. The Black families filed racial discrimination suits against the city, but these suits were dismissed and the City was granted the right to seize and condemn the property with minimal reimbursement. While the Bruces asked for \$70,000 for their property and \$50,000 in damages, the City, with court approval, paid them only \$14,500 in compensation. In 1927, the Bruce family moved out of Manhattan Beach for good. The city promptly tore down all buildings on the properties, but did not build a park on the confiscated land until thirty years later, in 1956.

By the time the park was built, the property's history was largely forgotten and its name had changed several times. Eventually, as a result of a City of Manhattan Beach project called Facts on Plaques, the history of Bruce's Beach began to resurface. In 2006, the city's first Black council member sought to rename the park and honor the memory of the Bruce family (Chief Executive Officer, Los Angeles County n.d.). After much discussion among council members and "emotional speeches" from residents, many of whom "wore large paper hearts with 'BB' written on them," the city council voted, 3-2, to honor this history by renaming the park Bruce's Beach (City of Manhattan Beach 2021, p. 23).

The current plaque at the site reads

Bruce's Beach

After being turned away from other coastal cities, Willa and Charles Bruce acquired property along the Strand in Manhattan Beach to create a beach resort for the Black community on February 19, 1912. By 1916, the resort known as "Bruce's Beach" was a thriving fixture for the Black community, with a restaurant, dancehall, changing rooms, and showers.

Soon after, several other Black families purchased property in and near the current location of the park. Major George Prioleau and Mrs. Ethel Prioleau, Elizabeth Patterson, Mary Sanders, Milton and Anna Johnson, John McCaskill and Elzia L. Irvin, and James and Lula Slaughter built homes on their property.

Unfortunately, not everyone in Manhattan Beach welcomed the Bruces' enterprise and its crowds of Black patrons in that era of Jim Crow and racial segregation.

The Bruces, their patrons, and the other Black property owners in the area faced harassment, intimidation, and discrimination by some, including City Hall. These actions aimed to make Manhattan Beach inhospitable to Black residents and visitors.

Enough White residents ultimately pressured the City Council to exercise its power of eminent domain to acquire the land for use as a public park. As a result, the City condemned the properties of the Bruces, the Prioleaus, the Johnsons, Ms. Patterson, and Ms. Sanders. In addition, twenty-five White-owned properties that sat undeveloped among the Black-owned properties were also condemned.

The City's actions at the time was [sic] racially motivated and wrong. Today, the City acknowledges and condemns those past actions, and empathizes with those whose property was seized. We are not the Manhattan Beach of one hundred years ago. We reject racism, hate, intolerance, and exclusion.

This park is named in memory of Bruce's Beach and in recognition of Manhattan Beach's next one hundred years as a city of respect and inclusion.

Dedicated 2022 (Fratello 2022)

3.4.1: Returning Bruce's Beach

Thus far, the story of Bruce's Beach has focused on the role of the city, however, as is often the case in local government, the county in which the city resides, and the state itself, have major roles to play in land use and land acquisition. In 1995, for example, Los Angeles County had been involved in several land transfers between Manhattan Beach and the state of California (Chief Executive Officer, Los Angeles County n.d.). By the time that Janice Hahn was elected the area's supervisor, the site of the Bruces' original resort was owned by the county, and home to the Los Angeles County Lifeguard Administration Building. This meant that amends for the injustice done to the Bruce family could be made by the LA County Board of Supervisors, who were unanimously in support of doing so. In public documents, the county noted, "Government has a responsibility to prohibit and eliminate racial discrimination in all forms and to ensure that all persons are entitled to security against forced removal, harassment, and intimidation by entities who seek to deprive individuals of their rights to self-determination and dignity on the basis of their race. In righting this historic wrong, the County is acting in the public's interest to ensure that communities can fairly access justice and an effective remedy, including, when appropriate, the potential return, restitution, resettlement, rehabilitation, or compensation, for unlawful and race-based displacements" (Chief Executive Officer, Los Angeles County n.d., n.p.).

Although the County Board of Supervisors favored returning the beach to the Bruce family, state law prohibits public beaches from being sold or transferred without state approval, therefore Supervisors Hahn and Holly Mitchell (who, as a result of redistricting, now represented Bruce's Beach), sought the assistance of State Senator, Steven Bradford. In 2021, Bradford sponsored Senate Bill 796, a state law that would allow the county to return Bruce's Beach to Willa and Charles's legal heirs. The state legislature unanimously voted for the bill and Governor Newsom signed it at the beach, surrounded by members of the Bruce family (Xia 2021). The property was returned to Willa and Charles Bruce's great-grandsons in a formal public ceremony in July 2022. However, because the property remains a public beach that is not zoned for development, terms of the property settlement required the county to provide a \$413,000 annual lease to the Bruce family, and offer the family the option to sell the property back to the county within two years, for \$20M (Ellis 2023). In January 2023, the family announced that it would take the sell-back option, selling their property to the county, but this time on their own terms and at fair market value.

3.5: One to Watch

Stories of the injustices done to Native Americans can and have filled volumes.^[4] A complicated example comes from Palm Springs, today considered a desert oasis for tourists and site of weekend homes for many of the rich and famous. In the 1870s, when Native American reservations were created in the area, among the land granted to the Agua Caliente Band of Cahuilla Indians was 1-square mile known as Section 14 in what would become downtown Palm Springs (Brown 2015). As the city began to develop a base of wealthy homeowners and tourists, the need for service employees grew, however, as with many resort communities, affordable housing was nonexistent. At the same time, the federal government restricted leases on Indian land to only 5 years, making it impossible to secure home mortgages or development projects. Thus, the Tribe was restricted from selling or leasing the land, and instead rented plots in Section 14 to Palm Springs' working class—largely Blacks and Latinos who worked as housekeepers and groundskeepers in the homes and resorts of wealthy residents and tourists. Section 14 was tribal land so the city collected no property taxes on it, therefore it provided no services: no water, no sewers, no paved roads. Due to government policy at both the federal and local level, therefore, the area and many of its homes were haphazardly constructed, and while former

residents remember it fondly as a tightknit community of 2,000 families, officials considered it an eyesore in an increasingly affluent city (Brown 2015; Fonseca 2023; Singh 2023).

In the 1950s, the federal government loosened rules on Indian owned land, finally allowing for 99 year leases in 1959. This opened Section 14 for development, however, federal policy also called for “guardians” and “conservators” to be assigned to the tribes, ostensibly to protect them from being cheated in land deals (Brown 2015). In Palm Springs, local lawyers, real estate agents, the chief of police, and the city’s mayor, Frank Bogert, were appointed to these positions; they often profited by overcharging the Tribe for their services, sometimes double-billing, and occasionally selling off property without tribal consent (Holland 2023).

From the late 1950s through the mid-1960s as Palm Springs grew, the city sought to evict the residents of Section 14 for sale to developers. If residents wouldn’t leave, the city forced them out, often burning and bulldozing their homes (Singh 2023). A 1968 investigation by the State of California called this a “city engineered holocaust” (Fonseca 2023). As Black reparations and the story of Bruce’s Beach gained media attention in 2020, the history of Section 14 began to resurface, and in 2021 the City of Palm Springs issued a formal apology to survivors, and removed a statue of Mayor Bogert from in front of city hall (Singh 2023). In 2022, a group of survivors filed a claim against the City, seeking \$2B in reparations for the damage done to their families. However, in April 2023 in a 3-2 vote, the Palm Springs City Council voted against hiring a Columbia University group that would have crafted a plan for reparations (Albani-Burgio 2023). Instead, the council voted to have city staff write a new Request for Proposals (RFP) seeking a consultant who would undertake further historical research to confirm the city’s involvement in Section 14 evictions and property destruction.

3.6: Conclusion

Returning illegitimately confiscated property and making monetary reparations are among the most complicated and difficult ways in which governments can make amends. However, even doing things like renaming parks and buildings, removing statues that honor bigots and traitors, honoring the spaces that have been site of violence and bloodshed, or making formal apologies have been cause of angst among government officials. Current city leaders in Manhattan Beach, for example, have refused to take the advice of their own task force and apologize to the Bruce family out of fear that the city will be branded racist (Richard, Nguyen, & Pollack 2021; Xia 2021). This further complicates the fact that, while LA County owned and returned Bruce’s Beach to its rightful owners, the city continues to own several of the other properties that were seized under false pretenses from Black families in 1924. Should city leaders work to make amends to those families? If so, how?

These are among the questions that government leaders will increasingly have to face. On the horizon are new issues as well, including the idea of climate reparations to address environmental health disparities (Donoghoe & Perry 2023). For example, Blacks are 75% more likely to live in communities near toxin emitting industries, as well as more likely to live in flood-prone areas, and Native American lands have long been used as sites of waste dumping and heavy metals mining that can have negative health consequences. Climate change has already led to increased incidences of extreme weather: hotter temperatures, drier droughts, and stronger storms, which disproportionately impact poor and minority communities. The low-income are less able to cool their homes in extreme heat, warm them during extreme cold, or afford the property and health insurance that can help them recover from floods, fires, and disease caused by environmental threats.

How to mitigate these harms, ensure the health and safety of communities, and reduce the racial disparities in exposure to environmental hazards, are issues that must be addressed by government. Importantly, both elected officials and public administrators who are hired for their training and expertise increasingly face demands to consider social equity when making decisions such as where to locate trash facilities and highways. As one scholar has noted, “the pendulum swings in both directions: government was a powerful historical force in building social inequity and can also be a powerful force in eliminating it” (Gooden 2017, p. 824).

? Questions to Consider

History is replete with examples of government behaving badly. In the case of Bruce’s Beach, returning the property was possible because it was owned by a public entity with a willingness to make amends. Would this case have been different if the property had been sold to a private developer in the 1950s, and now was the site of beachfront homes? In what ways? If it had been private property, could the family be compensated? If so, how?

Read again the words on Manhattan Beach’s plaque (pg 6) and the statement from Los Angeles County about Bruce’s Beach (pg 7), and compare the two. In what ways are they similar and in what ways do they differ? Who is the audience for public statements like these, and does the audience matter in how they are written?

The razing of Palm Springs' Section 14 occurred sixty years ago, so most of the survivors were children at the time. What, if anything, are they owed by the city? And what about the Agua Caliente Band of Cahuilla Indians, who may have been cheated by their federally appointed conservators?

The concept of the “sundown town” is an example of racist exclusion exercised by local governments across the country during the Jim Crow era and beyond. In sundown towns, Black, Indigenous, and other people of color (BIPOC), were typically allowed to work or shop in town during the day, but knew that they could face violence if they stayed after sundown. The City of Minden, Nevada was one such town. Around 1910, the city marked a county-wide racist curfew with a siren warning BIPOC to leave town before dark (DeHaven 2021). While the curfew no longer exists, a siren still blares, now at 5pm. In May 2022, Washoe tribal leaders gathered to protest the city’s continued use of the siren “historically used to order people of color out of town after dark” (Reno Gazette Journal 2022, n.p.). City leaders say the siren now honors first responders, and should no longer be considered part of a racist history. If you were advising city leaders, what factors would you suggest they consider as they face continued protest against the siren? Is there a way for the city to make amends in this situation?

3.7: Podcasts and Videos

Chief Executive Officer, Los Angeles County. [Returning Bruce’s Beach: A 100-Year Journey to Justice](#). (21 minute video)

Muhammad Kenyatta, Vice-chairman of the Black Economic Development Conference. [The Black Manifesto \(interview\)](#). (1969) (7 minute interview)

Sarah McCammon. [The Story Behind '40 Acres and a Mule.'](#) *Code Switch*. (January 12, 2015) (3 minute listen)

Juana Summers. [The Push for a bill that would drive research into reparations for Black America](#). *National Public Radio*. (February 2, 2023) (8 minute listen)

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3.9: NOTES

- [1] To learn more about the way in which those unjustly incarcerated by Executive Order 9066 are being memorialized by the Irei National Monument Project: <https://ireizo.com/>
- [2] The records are clear that Willa Bruce was the property buyer (for \$1,225), a rarity for a woman in 1912.
- [3] Eminent domain allows government to take private property for public uses with compensation to the original owners.
- [4] For more, see Ned Blackhawk's *The Rediscovery of America: Native Peoples and the Unmaking of U.S. History* (2023), by Yale University Press.

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4: Government and Wicked Problems - The Death of Kelly Thomas

Caution

Note that this case study involves discussion of police brutality and mental illness. If you or a loved one could use assistance navigating issues of mental health, call 988 Suicide & Crisis Lifeline. Call 988 then 1 for veteran specific services, 988 then 2 for Spanish language services, 988 then 3 for LGBTQ youth through 25-years old (will transfer caller to The Trevor Project).

Introduction

On July 5, 2011 a call came into the Fullerton, California Police Department reporting that a White man was walking through a local parking lot, rattling car door handles. When police arrived, they found Kelly Thomas, a 37 year-old unhoused man with a history of mental illness, in an adjoining parking lot at the city's transportation center. Much of what ensued thereafter was captured on video from cameras stationed around the center. Eventually six officers are seen pummeling Mr. Thomas as he cries out for help, saying several times that he couldn't breathe. The incident, including photos of Mr. Thomas's horrific injuries, made national news. He died five days later.

As news spread, and both the photos and video of the beating went public, the community became incensed. The six officers were put on paid administrative leave (Irving 2011), but hundreds of residents attended the next city council meeting, demanding police reforms, the resignation of the police chief, and threatening to recall council members (Lovett 2011). Hundreds more attended weekend rallies in front of city hall, demanding "Justice for Kelly." Many signs called for better treatment of the homeless and mentally ill, at least one read, "Mental illness is not punishable by death" (Irving 2011).

The incident left most people, including city leaders, asking how a police encounter over a minor complaint could go so wrong? The mayor and other members of the city council had to act, but the problems they faced were incredibly complicated—what policy scholars call "wicked problems," those that are complex, highly contested and may never be completely solved (Rittel & Webber 1973). This case study provides an opportunity to consider how government addresses these wicked problems: How does local government deal with the issue of homelessness, particularly when it intersects with mental illness and criminality? How do governments meet the needs of the most vulnerable and ensure that their agents, including police and elected officials, are held accountable? More broadly, how can society address the needs of those with serious mental illness?

What we know about Homelessness

In order for government to address any problem, it must understand it; in this case governments need to know what factors lead to homelessness, and what potential solutions work. This knowledge allows professionals in the fields of housing and public health to design appropriate policies and programs to intervene before people lose housing, and to provide services to the unhoused. For example, researchers have found that people most at-risk are those whose ability to function in society is compromised, including those who cannot obtain or maintain employment or housing, who lack access to services, are not part of social networks, and those with troubled familial and friend relationships, including those completely estranged from family (Montgomery, Metraux & Culhane 2013). Although the existence of severe mental illness is associated with all of these deficiencies, it is important to note that the vast majority of people who suffer from mental illness *are not* homeless. Even among the unhoused, *less than half* have been diagnosed as mentally ill. Note also that the unhoused who have been diagnosed with mental illness typically suffer from the most severe types of illness such as schizophrenia and bipolar disorder (Folsom & Jeste 2002; Folsom, et al. 2005; Hodgson et al. 2013).

Other risk factors for homelessness include drug and alcohol addictions, and incidence of domestic violence (Folsom et al 2005; Duke & Searby 2019). While early studies suggested that up to one-third of the unhoused suffered from mental health problems (Folsom & Jeste 2002), more recent studies have pointed out a chicken and egg problem: homelessness itself is a mental health stressor, particularly for young people (Hodgson, Shelton, van den Bree, and Los 2013) and women (Duke & Searby 2019), so it is difficult to determine which came first. Public health professionals note that the unhoused often suffer from *comorbidities*—the condition of living with more than one disease or illness at the same time. This often includes having both mental health and substance abuse problems (Folsom, et al. 2005; Hodgson et al 2013; Duke & Searby 2019).

The public and mental health recommendations for services that can improve the lives of these populations typically include individual case managers, access to mental and physical health services, employment specialists, substance abuse counseling, and provision of housing (Fitzpatrick-Lewis, Ganann, Krishnaratne, Ciliska, Kouyoumdjian, & Hwang 2011; Fowler, Hovmand,

In order to better understand the unhoused population, in 2007 the U.S. Department of Housing and Urban Development (HUD) started what is called the Point in Time Count^[1] which requires a count of the nation's unhoused on a single night each January (HUD Exchange 2023). Typically carried out at the county level, and often over several nights in large, urban areas, the Point in Time Count is an invaluable tool for local government to understand the size and scope of these vulnerable populations.

The figure consists of four pie charts arranged in a 2x2 grid, showing the gender distribution of men and women in sheltered and unsheltered populations in OC and U.S. regions. The legend indicates that the blue color represents men, the orange color represents women, and the grey color represents Trans/fluid (>1%).

Region	Sheltered	Unsheltered
OC	men (51%), women (48%), Trans/fluid (>1%)	men (73%), women (26%), Trans/fluid (>1%)
U.S.	men (55%), women (44%), Trans/fluid (>1%)	men (68%), women (30%), Trans/fluid (2%)

Table 1: Unhoused Families & Children, Orange County, CA and U.S., 2022

The race and ethnicity of Orange County’s unhoused, along with national comparisons, can be seen in Table-2. The first column indicates the county’s overall population diversity. Note that the Asian American/Pacific Islander population in Orange County (23%) is far higher than the national average of 6%, while the Black population (2%) is much lower than the national average of 12.5%. Like Kelly Thomas, the vast majority of the unhoused in Orange County in 2022 were White. The numbers of homeless Whites is in proportion to their population numbers in the county, while Blacks were overrepresented, and Asian/Pacific Islanders were far less likely to be among the unhoused than in the general population. Ethnic Latino/a/x were slightly more than half of the sheltered and a third of the unsheltered homeless; they are about a third of the overall population of Orange County.

<https://socialsci.libretexts.org/@go/page/183797>

	Orange County Overall*	Sheltered, OC	Unsheltered, OC	Sheltered, US	Unsheltered, US
Asian American/Pacific Islander	23%	4.5%	4%	2.5%	4.5%
Black	2%	11%	6%	44%	27%
Native American/Alaskan	1.5%	3%	4%	2.5%	4.5%
Multiple Races	4%	4%	20%	5%	7%
White	70%	77%	65%	45%	57%
Of above that identify as ethnically Latino/a/x	34%	55%	34%	22.5%	26.5%

* Data from the U.S. Census Bureau, <https://www.census.gov/quickfacts/orangecountycalifornia>

Finally, in keeping with public health research findings, many of Orange County’s unhoused experience mental health and substance abuse issues, as well as physical and developmental disabilities (see Table-3). Approximately 10 percent—of both the sheltered and unsheltered—were victims of domestic violence. More than half of the unsheltered are chronically homeless, and more than 40 percent face problems of addiction. Similar to research findings, Table-3 also makes it clear that, particularly among the unsheltered, the homeless in Orange County experience comorbidities, such as having both physical and substance abuse problems.

Table 3: Housing & Health Status of Unhoused, Orange County, CA 2022

	Sheltered, OC	Unsheltered, OC
Chronically homeless	38%	55%
Substance abuse issue	20%	41%
Physical disability	25%	32%
Mental health issue	28%	30%
Developmental disability	2%	14%
Domestic violence survivor	11%	10%

The Life & Death of Kelly Thomas

Kelly Thomas was born in Fullerton and lived in the area his entire life. In his youth, he had wanted to be a fire fighter, but as he entered adulthood his family began to notice behavioral changes; he disregarded personal hygiene, lied about his whereabouts, and went missing for periods of time (Wood 2011a). His parents sought medical help and in his early twenties Kelly was diagnosed with schizophrenia. His illness could be managed with medication, and when under supervised care he did well. However, the medication made him tired and, like many people being treated for mental illness, he stopped taking his medication whenever his life seemed under control (Wood 2011a; Irving 2011). This frequently left him unhoused—his father described him as “a drifter”—and it was not uncommon for him to have encounters with the police, including at least some of the officers on the scene on July 5 (Coker 2011; Joyce 2013a, 2013b; Wood 2011a).

Why that Tuesday night became so violent is a bit of a mystery. Kelly Thomas was in the parking lot of the Fullerton Transportation Center at about 8:30pm, when two officers arrived (Gennaco & Walsh 2012). Fitting the description of a man who was potentially trying to break into cars in an adjoining lot, they began questioning him. At that point the encounter seemed fairly routine; Kelly wasn’t immediately cooperative, but he eventually let the officers search his backpack, in which they found mail

addressed to someone else. A later investigation revealed that Kelly had found the backpack with the discarded mail inside. After their search, about twelve minutes into questioning, it is clear from transportation center video and digital audio recordings from officer-worn equipment, that this otherwise routine stop of Kelly Thomas became violent (Gennaco & Walsh 2012; Joyce 2012b).

With no apparent provocation, Officer Manuel Ramos and eventually five others, participated in holding down and pummeling Kelly Thomas with fists, batons, and a Taser gun for nearly ten minutes (Barber 2014). A 59-page internal affairs report details the horrific events, including Corporal Jay Cicinelli telling other officers, “I f*cking beat him probably twenty times in the face with this Taser” (Gennaco & Walsh 2012, p. 39). While initial reports from the police indicated that officers on the scene had sustained injuries including broken bones during the altercation, the department later admitted that no officers had been injured (Wood 2012a). Corporal Cicinelli argued that Kelly must have been on drugs, thus requiring multiple officers to subdue him; a toxicology report found no drugs or alcohol in Kelly’s system (Newcom & James 2012). Finally, although video indicates that Kelly began to run at one point, he was quickly caught, and eye-witnesses to the beating described him as having been subdued by multiple officers and in no condition to resist arrest even while officers continued to tell him to “stop resisting” (Coker 2011; Irving 2011; Kain 2011; Lovett 2011; Wood 2011a).

Twenty-six minutes into his encounter with Fullerton police, video indicates that Kelly stopped moving; six minutes later an ambulance arrived to take him to a local hospital (Joyce 2013b). Hospital records revealed that he had severe head and neck injuries, a broken nose, cheekbone, several broken ribs, and severe internal bleeding (Sewell & Winton 2011). On July 10, after his family made the decision to take him off of life support, Kelly Thomas was dead. The coroner’s report indicated that Kelly died of lack of oxygen to the brain, a result of the combination of sustained compression to his chest, and extreme facial injuries (Morrison 2014).

The Community Reacts

Neither the city nor the police department responded quickly to Kelly’s death, and were it not for his father, Ron Thomas, the incident would probably have quickly and quietly faded from memory. Instead, Mr. Thomas, a former Orange County Sheriff, circulated by-stander video and urged the public to come forward, he contacted the media and publicly committed to ensuring that the officers at whose hands his son had died would be criminally charged (Irving 2011). By July 18, only one of the officers had been put on administrative leave, and when the incident was not on the City Council’s July 19 agenda, Ron Thomas brought a group to the council meeting with him (Wood 2011c; Coker 2011). Calling themselves Kelly’s Army, the group organized protests outside of the Fullerton Police Department shortly after Kelly’s death; they continued every Saturday into October (Landa 2011).

Finally, on July 29, Fullerton City Council Member Sharon Quirk-Silva contacted the city manager to demand that the other five officers be placed on leave, which was done on August 2, the day of the next city council meeting (Ponsi 2011; NBC 2011). At the council meeting, over 200 people crowded the council chamber, the adjoining hallway, and the library, as three hours of public speakers called for transparency, the release of video and audio recordings, and the firing of the police chief, as well as threatening to recall council members (Wood 2011a; 2011b). Shortly after the August meeting, amidst extreme public criticism and Council Members Quirk-Silva and Bruce Whitaker calling for his resignation, Police Chief Michael Sellers took medical leave; he retired six months later (Wood 2011d; Wood 2012b).

Note that one of the things the city did before the August 2 council meeting was to send a city attorney to lunch with Kelly’s parents and offer them a \$900,000 out-of-court settlement (Wood 2011a). His parents declined the offer. On August 5, the city council met in closed session to discuss charges by Ron Thomas that the Fullerton police violated Kelly’s civil rights, and that the city had engaged in both a cover-up and negligence in the incident (Taxin and Risling 2011). That night the council agreed to hire an independent investigator, Michael Gennaco, an attorney for the civilian oversight body of the Los Angeles County Sheriff’s Department, to investigate Kelly’s death. In September, Fullerton’s City Manager and City Council convened a Task Force on Homelessness and Mental Health Services (City of Fullerton 2012; 2013a). Ron Thomas was appointed a positon on the task force.

In May 2012, the task force presented its recommendations to the city. Not surprisingly, most of their recommendations were in line with the recommendations of public and mental health professionals discussed earlier. They included: providing outpatient mental health treatment for severely mentally ill adults; creating a facility that would serve as a single-point-of-contact to provide services to the unhoused with mental illness including medical care, career assistance, and peer mentoring; urging Orange County to help Fullerton and its neighboring communities to acquire land for permanent supportive housing; and assigning a behavioral health specialist to the Fullerton Police Department to work with both the mentally ill homeless population and the police to ensure better outcomes in police encounters (Wood 2012c).

At the same time, angry residents made good on their threats to recall Fullerton City Council members who had acted slowly and sometimes callously—the mayor told a group that he had been in Vietnam and “seen worse” injuries than those inflicted on Kelly Thomas (Taxin and Reislin 2011). He and two other council members were the subjects of a special recall election, and in June 2012 all three were recalled and replaced with new city council members (Ponsi 2012).

The Fullerton Police Department (FPD) underwent changes as well. A year after Kelly Thomas’s death, the FPD began partnerships with local nonprofit homeless service organizations, as well as community public health agencies, to create a Homeless Liaison Officer (HLO) unit with four full-time officers (City of Fullerton 2023; Custodio 2016). Although all members of the FPD receive training on how to deal with both the unhoused and those with mental health concerns, HLO officers receive additional, specialized training (Custodio 2016). Fullerton’s need for these services is great: In 2015 HLO received over 5,800 calls related to homelessness. Four days a week a clinician from Orange County Mental Health works directly with HLO, driving the city’s streets to assist with both the unhoused, and other residents experiencing mental health crises (City of Fullerton 2023).

Justice for Kelly?

It is hard to know what justice looks like in a case like Kelly Thomas’s. Three of the officers involved in his death, Joseph Wolfe, Manuel Ramos, and Jay Cicinelli, were fired, and indicted by an Orange County grand jury (Roe 2015). The District Attorney’s Office filed second-degree murder and involuntary manslaughter charges against Officer Ramos, and charged Corporal Cicinelli with involuntary manslaughter and assault or battery by an officer. Charges against Officer Wolfe were dropped. The other three officers were neither charged nor fired in Kelly’s death.

Kelly’s Army, including his family, were thrilled when the charges were filed—recall that Ron Thomas wanted criminal charges brought against the officers (CBS News 2012; Joyce 2013a; Wood 2012d). If found guilty, Cicinelli faced up to four years in prison, and Ramos faced a life sentence (Newcom & James 2012). The prosecution, led by Orange County’s District Attorney, Tony Rackauckas, argued that the video clearly showed an abuse of police power over a man who was unarmed and of little threat to six officers (Barber 2014). The defense argued that Kelly Thomas was unusually strong and violently resisting arrest, and that police actions were in line with training on how to handle dangerous detainees (Barber 2014; Flores & Esquivel 2014). On January 13, 2014, after two days of deliberation, a jury of eight women and four men found Ramos and Cicinelli not guilty of any crime (Salazar & Ponsi, 2014). Following the verdict, which Kelly’s parents described as police getting away with murder, a crowd of 80 people returned to the Fullerton Transportation Center to hold a vigil and protest (see *LA Times* Photo Gallery, below).

Officers Wolfe and Cicinelli filed wrongful termination cases against the Fullerton Police Department after Ramos and Cicinelli were acquitted (Saavedra 2020). The two argued that their due process rights had been violated by the City of Fullerton, and that they deserved to have their jobs back. In October 2020 a judge determined that both had been fired for due cause, and denied their request.

In her 2023 book, *Shielded: How the Police Became Untouchable*, Joanna Schwartz notes that cases of police brutality, abuse, and murder typically do not end up in criminal court, and if they do, they usually end like the Kelly Thomas case, with officer acquittals. Instead, victims and their families often end up taking these cases to civil court to find justice. In November 2015, three and a half years after Kelly’s death, and just hours before a civil wrongful death trial was to begin, the City of Fullerton agreed to pay Ron Thomas a \$4.9 million settlement (Ponsi, Emery, & Walker 2015). Civil rights attorneys and advocates for the mentally ill said that the large settlement—after the city had already paid \$1 million to Kelly’s mother in a 2012 settlement—sent a clear message that the lives of those with mental health problems are not expendable.

Conclusion

For all of the work done by police departments like Fullerton’s to better meet the needs of the mentally ill, there is clearly more work to do. A recent study estimated that between 2010 and 2017, the mentally ill were nearly 12 times more likely to experience police use of force, and 10 times more likely to be injured by police than those without mental illness (Laniyonu & Goff 2021). Between 2015 and 2022, more than 20 percent of those killed by police officers were experiencing mental health crises at the time (Washington Post 2023; for more on mental illness and the criminal justice system, see *National Alliance on Mental Illness*, below).

In *Shielded*, Joanna Schwartz details the case of Tony Timpa, a 32-year old who suffered from anxiety and schizophrenia. In 2016, recognizing his own erratic thoughts, Tony called the Dallas, Texas police, explaining that he was off of his medication and needed help. When police arrived, Tony was hand-cuffed next to a bus stop; a passing security guard had seen Tony, barefoot and running in a busy street, and was able to stop and detain him while they waited for Dallas police officers.

Body-worn police cameras document what came next. As the five officers approached, Tony was rolling on the ground, yelling for help. He told police that he had taken cocaine, and they replaced the “guard’s handcuffs with their own and zip-tie[d] Tony’s feet” (Schwartz 2023, p. 45). At that point, and without provocation, two of the officers held Tony down by putting their knees on both his lower and upper back; one of them held his neck to the ground. Police policy and training for the Dallas Police Department instruct officers to use this technique—called prone position—for short durations because it is known to increase the risk of death for detainees. Instead, one of the officers kept Tony in prone position for over fourteen minutes, even as he cried out, “‘You’re gonna kill me!’” (p. 45). After eleven minutes, Tony’s body went limp. An officer asked Tony if he was okay, but he didn’t respond, and no one checked to see if he was still breathing. It was another three minutes until paramedics arrived and the officer released his knee from Tony’s back. Paramedics put him in the ambulance where Tony was pronounced dead. While a Dallas grand jury indicted three of the officers, the district attorney’s office dropped the charges. The Dallas PD gave the officers written reprimands and sent them back to police the streets.

More recently, in March 2023, the mother of Ivor Otieno, a 28-year old with a history of mental illness, called authorities to take him to the hospital following unusual behavior. Once taken from their home, however, Ivor was lost in the system, and his mother spent three days calling authorities in an attempt to locate her son and ensure he was receiving his medication (Robertson & Hauser 2023). When officials finally found him, she was told that her son was dead. Video from the Central State Hospital, a mental health facility in Petersburg, Maryland, showed seven sheriff’s officers and three hospital staffers pinning Ivor Otieno to the ground for eleven minutes; Mr. Otieno’s death certificate indicated he died of asphyxiation (O’Brien & Brooks 2023). Perhaps in a sign that governments are beginning to take the care and treatment of the mentally ill more seriously, all ten of the officers and hospital staff have been charged with second-degree murder. What is clear is that public leaders—whether elected officials, public administrators, public health professionals, or members of the criminal justice system—will continue to grapple with the wicked problems of homelessness, mental illness, and police accountability.

View/Video

Los Angeles Times, Photo Gallery: Homeless man dies after run-in with Fullerton police. Twenty-nine photos of protest marches, “Kelly’s Corner,” city council meetings, crowds learning that officers will be charged in the death of Kelly Thomas, and crowds learning that the police had been acquitted in the trial (no date)

National Alliance on Mental Illness, *Mental Illness in the Justice System* (5 minute video)

National Alliance on Mental Illness, *Justice System Diversion: Anita Fischer: All American Advocate*. (3 minute video)

Resources

National Alliance on Mental Illness, *Resources: Responding to Crises*. [Extreme Risk Protection Orders \(ERPOs\)](https://www.nami.org/Advocacy/Policy-Priorities/Responding-to-Crises), [National Hotline for Mental Health Crises and Suicide Prevention](https://www.nami.org/Advocacy/Policy-Priorities/Responding-to-Crises), [Psychiatric Advance Directives \(PADs\)](https://www.nami.org/Advocacy/Policy-Priorities/Responding-to-Crises)
<https://www.nami.org/Advocacy/Policy-Priorities/Responding-to-Crises>

988 Suicide & Mental Health Crisis Line Call 988 then 1 for veteran specific services, 988 then 2 for Spanish language services, 988 then 3 for LGBTQ youth through 25-years old (will transfer caller to The Trevor Project)

Questions for Consideration

Imagine that you had been asked by the City of Fullerton to evaluate its reaction to the beating death of Kelly Thomas. What would you say the city did right, and what did it do wrong? What about the Fullerton Police Department after July 5, 2011: What would you say the department did right, and what did it do wrong?

Homelessness has long been considered a wicked problem—the type that is contested and complex, and which government may only be able to *manage*, and not to *solve*. What do you think management of homelessness means for city leaders faced with large unhoused populations? What can they do to reassure the rest of the city’s residents that they are “doing something” about the problem?

The National Alliance on Mental Illness (NAMI) has noted that those experiencing mental health crises are at increased risk of police use of force, injury, and death, therefore, it has made criminal justice reform and decriminalizing mental illness an important priority in its public policy advocacy work. After reading this case study, what policies do you think city and/or police leadership should pursue to ensure that those in mental distress are given “help, not handcuffs” as NAMI says?

In civil cases against officers, such as that which awarded Ron Thomas \$4.9M, the officers, police departments, and cities are typically not responsible for payment (Schwartz 2023). In Fullerton, for example, the city's insurance company was responsible for the pay-outs to Kelly's family (Ponsi, Emery, & Walker 2015). In what ways might this system affect the accountability of officers, police departments, or cities when facing wrongful death lawsuits? Is this system sufficient or are there alternatives?

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NOTES

[1] For more information on The Point in Time Count: <https://www.hudexchange.info/programs/hdx/pit-hic/>

[2] National 2022 Point in Time Count numbers come from the U.S. Department of Housing and Urban Development's The 2022 Annual Homelessness Assessment Report (AHAR) to Congress <https://www.huduser.gov/portal/sites/default/files/pdf/2022-AHAR-Part-1.pdf> December 2022.

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